

STATE OF MICHIGAN
14th CIRCUIT COURT – FAMILY DIVISION
COUNTY OF MUSKEGON *990 Terrace St*

Proposed Order Regarding Custody, Parenting Time, and Child Support

Plaintiff: Andrew J. Pigors
Defendant: Emily Ann Watson
Case No.: 2024-001507-DC

Addresses, phones, emails
JENNIFER BARNES

This matter having come before the court on the motion of the plaintiff, Andrew J. Pigors, and the court being fully advised in the premises:

IT IS HEREBY ORDERED:

1. **Custody and Parenting Time:** a. Legal and physical custody of the minor child, The minor child David Watson, shall be awarded equally to both parents, with each parent having 182.5 days of parenting time per year. [MCL 722.27(1)(a)]
b. The parenting time schedule will be set as Friday 5:30 p.m. to Friday 5:30 p.m., week on/week off, with holidays allocated as follows:
 - Wed night 5:30pm* ☒ Thanksgiving ~~Christmas Eve~~ with Emily Watson. *- 5:30pm Christmas Eve drop off.*
 - ☒ Christmas Day and New Year's with Andrew Pigors.
 - ☐ The holiday schedule will revert to the ex-parte temporary custody order if a conflict arises.
c. The defendant, Emily Ann Watson, shall promote and encourage a close and continuing relationship between the minor child and the plaintiff, Andrew J. Pigors. Both parents shall cooperate in decisions related to the child's health, education, and welfare. [MCL 722.26a]
~~d. A detailed parenting schedule shall be agreed upon by both parties within 14 days or, if no agreement is reached, a schedule shall be set by the court. [MCR 3.211(C)(1)]~~
2. **Child Support:** *order*
 - a. The child support obligations of the plaintiff shall be recalculated based on the modified custody arrangement and the current financial circumstances of both parties. The Friend of the Court shall perform the recalculation in accordance with the Michigan Child Support Formula. This recalculation shall reflect the increase in parenting time and changes in wages, insurance, and obligation costs. [MCL 552.605]
3. **Make-Up Parenting Time:**
 - a. The plaintiff, Andrew J. Pigors, shall be granted additional parenting time to make up for the time lost due to the prior reduction in his parenting time. The make-up time shall be arranged between the parties. If the parties cannot agree, the court shall determine the schedule. [MCR 3.211(C)(4)]
4. **Other Provisions:**
 - a. Both parties are prohibited from making disparaging remarks about the other parent in the presence of the minor child. [MCL 722.27(1)(c)]
 - b. The parents shall communicate directly with each other regarding matters involving

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the child, and neither parent shall use a third party to relay information unless absolutely necessary. [MCR 3.211(C)(7)]
c. Any other orders necessary to facilitate the best interests of the minor child, The minor child David Watson, shall be issued accordingly. [MCL 722.23]

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Citations and Legal Basis:

1. **MCL 722.27(1)(a)**: This law governs how courts may order custody arrangements in Michigan, emphasizing the best interest of the child and allowing for joint custody.
2. **MCL 722.26a**: This statute promotes a child's strong relationship with both parents and emphasizes cooperation in parenting decisions.
3. **MCR 3.211(C)(1)**: This Michigan Court Rule addresses parenting time orders and the need for specific schedules.
4. **MCL 552.605**: Refers to the recalculation of child support in accordance with the Michigan Child Support Formula (MCSF), which considers income and parenting time changes.
5. **MCR 3.211(C)(4)**: This Court Rule allows the court to schedule make-up parenting time when necessary.
6. **MCL 722.27(1)(c)**: Prevents parents from making negative comments about the other parent in front of the child.
7. **MCR 3.211(C)(7)**: Requires that parents communicate directly with each other regarding the child and prohibits third-party involvement except when absolutely necessary.
8. **MCL 722.23**: Lists the 12 best interest factors that must guide all custody decisions.